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|     |                                     | CASE MANAGEMENT CONFERENCE – CONTINUED<br>TO 09/21/2026 at 1:30 p.m.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 107 |                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 108 | Lorenze v. Pakbaz,<br>2025-01532139 | <p>DEMURRER TO AMENDED COMPLAINT –<br/>SUSTAINED IN PART WITH LEAVE TO AMEND (as to 3<sup>rd</sup> cause of action for violation of patient access to health records act); OVERRULED AS TO ALL OTHER ISSUES</p> <p>Plaintiff Alexis Lorenze sued Defendants Zahra Pakbaz, M.D. and the Regents of the University of California for Medical Battery, Violation of the Elder Abuse and Dependent Adult Civil Protection Act, Violation of Patient Access to Health Records Act (Health &amp; Safety Code § 123110), and Breach of Fiduciary Duty (Candor). (There are other causes of action to which Defendants do not demur; they will not be discussed to avoid confusion.) Defendants demur to causes of action 1, 2, 3, and 5 on the ground they fail to state facts sufficient to constitute a cause of action against Defendants, and on the ground the fifth cause of action for breach of fiduciary duty is duplicative of the medical battery cause of action. Defendants also argue causes of action 1-5 are pleading artifices to avoid the constraints of the Medical Injury Compensation Reform Act of 1974.</p> <p>Plaintiff alleges she was a patient at UCI Medical Center suffering from a blood disorder and from a parvovirus. Plaintiff alleges she was a candidate for a treatment that required vaccinations, and those vaccinations could not be administered until her infection was under control. Nevertheless, hospital personnel administered 3 vaccines (not the ones Plaintiff was told she would be receiving) and she immediately suffered a severe and debilitating reaction. Plaintiff also alleges the doctor who prescribed the special treatment had a financial interest in the treatment.</p> |

#### Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) In assessing a demurrer, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law." (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at 747.) A complaint will be upheld against a demurrer if it pleads facts sufficient to place the defendant on notice of the issues sufficient to enable the defendant to prepare a defense. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50.)

#### Medical Battery

In order to establish a claim for medical battery, Plaintiff must prove that Defendants either (1) performed a medical procedure without plaintiff's consent, or (2) that plaintiff consented to one medical procedure but that defendants performed a substantially different procedure. Plaintiff's allegation that she was told she would be receiving one set of vaccinations when she received a different set of vaccinations meets this requirement, as does the allegation that her consent to any procedure was given under duress.

#### Dependent Adult Abuse/Neglect

Plaintiff meets the definition of a dependent adult, as she had been admitted as an inpatient at the hospital. (Welf & Inst. Code § 15610.23 (b).) Plaintiff alleges Defendants failed to use sufficient care to protect her from health and safety hazards and subjected her to "coercion, duress, undue influence, threat of abandonment, misidentification of the vaccines, omission of their risks and benefits, omission of federal REMS risk disclosures, omission of Dr. Pakbaz's financial conflict, and omission of information regarding the option to wait for the results of a pending Parvovirus

B19 test.” (Comp. ¶ 98) The allegations of the second cause of action meet the requirements of the Elder Abuse and Dependent Adult Civil Protection Act. (Stewart v. Superior Court (2017) 16 Cal.App.5th 87, 106-107.)

Violation of Patient Access to Health Records Act

Plaintiff alleges Defendants failed twice to timely respond to her request for production of all of her medical records, violating their duty under Health and Safety Code section 123110. (Comp. ¶¶107, 108)

Defendants argue this claim fails because Plaintiff does not (1) provide any facts regarding whether she or her nurse advocate paid reasonable costs for the records; (2) demonstrate she was deprived of information needed to make health care decisions; or (3) allege facts showing compensable damages. The demurrer is sustained with 20 days leave to amend as to the 3rd cause of action for violation of the Patient Access to Health Records Act.

Breach of Fiduciary Duty (Candor)

Defendant argues that this cause of action is merely duplicative of the medical battery cause of action because they both involve the lack of informed consent. Flowers v. Torrance Memorial Hospital (1994) 8 Cal.4th 992.

“Accordingly, we hold that a physician who is seeking a patient's consent for a medical procedure must, in order to satisfy his fiduciary duty and to obtain the patient's informed consent, disclose personal interests unrelated to the patient's health, whether research or economic, that may affect his medical judgment.” (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 131–132.)

The court finds the breach of fiduciary duty claim alleges a failure to disclose the risk of the treatment (FAC¶121, 122), resulting in an inability to provide informed consent, while the medical battery claim alleges Plaintiff was subject to coercion, duress, etc., preventing any consent.

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|     |                                                                            | <p><u>MICRA</u></p> <p>Civil Code section 3333.2 provides a cap on noneconomic damages in professional negligence cases. It does not apply to intentional torts. If appropriate, damages may be reduced by the court post-trial to comply with MICRA. It is not grounds for a demurrer.</p> <p>CASE MANAGEMENT CONFERENCE CONTINUED TO September 21, 2026, 1:30 p.m.</p> <p>Defendants to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 109 | National Funding v. 911 Restoration Services of Minneapolis, 2026-01543776 | <p>MOTION TO SET ASIDE/VACATE DEFAULT AND JUDGMENT – GRANTED</p> <p>Plaintiff National Funding, Inc.’s motion to vacate default and default judgment entered against Defendant 911 Restoration Services of Minneapolis LLC is GRANTED.</p> <p>Plaintiff has submitted evidence, in the form of the declaration of its counsel, that Defendant 911 Restoration Services of Minneapolis LLC filed a bankruptcy petition on March 9, 2026. (Hawley Decl. ¶ 3.) Default in this case was entered on March 23, 2026 and a default judgment was entered on April 3, 2026.</p> <p>11 U.S.C. §362 imposes an automatic stay upon the filing of a bankruptcy petition, which enjoins creditors of the bankruptcy petitioner from pursuing actions against the bankruptcy petitioner. Acts in violation of the automatic stay are void. (Hillis Motors, Inc. v. Hawaii Automobile Dealers' Ass'n (9th Cir. 1993) 997 F.2d 581, 586 [actions taken by state agency to dissolve debtor corporation while stay was in effect were void]; In re Schwartz (9th Cir. 1992) 954 F.2d 569, 571; see also In re Valentine (Bankr. E.D.Cal. 2022) 648 B.R. 324, 333 [“all acts that violate the automatic stay are void without regard to any knowledge or notice of a bankruptcy case or the automatic stay”].)</p> <p>“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or</p> |